

S I M U L A F L Y
TERMS AND CONDITIONS for MOBILE APPLICATION
SimulaFly app for iOS (Apple App Store) and Android (Google Play)

Contracting entity	Simula Technologies LLP, a limited liability partnership incorporated under the Limited Liability Partnership Act, 2008 (LLPIN: ACR-6328), Registered Office: Seat No. FFSD/50, Plot No. 20, Block H-1/A, Sector 63, Noida 201301, Uttar Pradesh, India
Contact / legal notices	support@simulafly.com
Grievance Officer	Shourya Pratap; support@simulafly.com
Scope	Use of the SimulaFly mobile application (iOS and Android). The Website (www.simulafly.com) has separate Terms.
Effective Date	08-06-2026

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PLEASE READ THESE TERMS CAREFULLY BEFORE DOWNLOADING, INSTALLING OR USING THE APP. BY CREATING AN ACCOUNT OR TAPPING "I AGREE", YOU ACCEPT THESE TERMS. IF YOU DO NOT AGREE, DO NOT USE THE APP AND UNINSTALL IT.

These Terms and Conditions ("**Terms**") are an electronic record under the Information Technology Act, 2000, generated by a computer system, and do not require physical or digital signatures. They are published in accordance with Rule 3(1)(a) of the IT (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021, and constitute the rules and regulations and user agreement for access to and use of the SimulaFly mobile application.

1. Definitions and Interpretation

1.1 In these Terms:

- a) "**Agreement**" means these Terms together with the App Privacy Policy and every policy, schedule or notice expressly incorporated by reference, as amended from time to time;
- b) "**App**" means the SimulaFly mobile application published on the Apple App Store and Google Play Store, including updates and new versions;
- c) "**App Store Rules**" means the applicable terms and policies of Apple Inc. and Google LLC governing apps distributed through their stores;
- d) "**Child**" means an individual under eighteen years of age;
- e) "**Content**" means all material available through the App, including text, graphics, images, photographs, audio, video, software, data, product information, Merchant listings and AI Outputs;
- f) "**AI Outputs**" means designs, visualisations, previews, recommendations, chat responses and other material generated by the App's artificial-intelligence features;
- g) "**Merchant**" means a third-party retailer, brand, store or service provider whose storefront, catalogue, products or services are discoverable or transactable through the SimulaFly platform; Merchants are independent third parties, not our agents or partners;
- h) "**Merchant Transaction**" means any enquiry, booking, order, purchase or service arrangement between you and a Merchant facilitated through the App;
- i) "**Paid Tokens**" means Tokens purchased by a User in accordance with provisions hereunder;
- j) "**Platform Services**" means SimulaFly's own digital services in the App, including AI generations, room visualisation, profile unlocks, premium tools and discovery features;
- k) "**Promotional Tokens**" means Tokens granted by SimulaFly to a User without charge, including the sign-up bonus, Reward Tokens and tokens for viewing advertisements, each in accordance with provisions hereunder;
- l) "**Reward Tokens**" means Promotional Tokens credited by SimulaFly upon a Merchant order that has been confirmed by the Merchant, in accordance with provisions hereunder;
- m) "**SimulaFly**", "**we**", "**our**", "**us**" means Simula Technologies LLP, a limited liability partnership incorporated under the Limited Liability Partnership Act, 2008 (LLPIN: ACR-6328), with registered office at Seat No. FFSD/50, Plot No. 20, Block H-1/A, Sector 63, Noida 201301, Uttar Pradesh, India;
- n) "**Tokens**" means SimulaFly's closed-system digital credits, redeemable only against Platform Services;
- o) "**User**", "**you**", "**your**" means the person using the App and, where the user is a Child, includes the parent or lawful guardian who has accepted these Terms on the Child's behalf;

p) **"User Content"** means content you submit through the App, including room photographs, images, scans, prompts, preferences, messages, reviews and feedback.

1.2 Headings are for convenience; "including" means "including without limitation"; the singular includes the plural; references to statutes include amendments, re-enactments and subordinate legislation; references to a Clause are to these Terms. In case of conflict, these Terms prevail over incorporated policies except the Privacy Policy, which prevails on privacy matters.

2. Acceptance and Changes

2.1 A binding agreement between you and SimulaFly forms when you first accept these Terms by a clear affirmative act at registration (or, if earlier, when you use the App after having been shown these Terms). Registration is mandatory; the App cannot be used anonymously.

2.2 We may amend these Terms. Material changes will be notified at least [15] days in advance through the App and your registered contact details, stating the effective date and summarising the change. We also inform users of changes at least once a year and provide periodic advisories at least once every three months regarding the rules, the consequences of non-compliance and reporting obligations.

2.3 If you do not accept an amendment, stop using the App and close your account under Clause 14 before the effective date; your continued use after the effective date constitutes acceptance of the amended Terms (this mechanism applies to contractual terms; consents for processing of personal data are governed solely by the Privacy Policy and are never inferred from continued use).

2.4 The Agreement is the entire agreement between you and us for the App and supersedes prior understandings on the same subject matter.

3. Eligibility, Accounts and Children

3.1 You may register and contract with us in your own right if you are at least 18 years old and competent to contract under the Indian Contract Act, 1872.

3.2 Children.

A Child may use the App only where: (a) the Child's parent or lawful guardian accepts these Terms on the Child's behalf and is the contracting party responsible for the account and all activity and charges on it; and (b) we have obtained the guardian's verifiable consent in accordance with the Privacy Policy.

Child accounts operate with the protections described in the Privacy Policy, including exclusion from behavioural monitoring, targeted advertising, buyer-intent scoring and AI-training. We may decline or limit features for Child accounts where age-appropriate.

3.3 Account integrity.

Provide accurate, current and complete information and keep it updated; maintain one account only; keep credentials confidential; do not share, sell or transfer your account; you are responsible for activity under your account unless caused by our breach. Notify support@simulafly.com immediately of suspected unauthorised access.

3.4 We may decline registration, or suspend accounts, on lawful, reasonable grounds, including failed verification, fraud indicators or breach of these Terms.

4. Licence and Acceptable Use

4.1 Licence.

Subject to these Terms, we grant you a limited, personal, non-exclusive, non-transferable, revocable licence to install and use the App on devices you own or control, for your personal, non-commercial use of the Services. All rights not expressly granted are reserved.

4.2 Licence restrictions.

Except as permitted by law notwithstanding this restriction, you must not: copy, modify, adapt, translate or create derivative works of the App; reverse-engineer, decompile or disassemble it; rent, lease, sell, sublicense, assign or transfer it; remove or alter proprietary notices; use it to build a competing product; or circumvent technical protections.

4.3 Prohibited content and conduct.

In line with the IT Rules, you must not host, display, upload, modify, publish, transmit, store, update or share any information that:

- a) belongs to another person and to which you have no right;
- b) is obscene, pornographic, paedophilic, invasive of another's privacy (including bodily privacy), insulting or harassing on the basis of gender, racially or ethnically objectionable, or relating to encouraging money laundering or gambling, or an online game that causes user harm, or promoting enmity between different groups on the grounds of religion or caste with intent to incite violence;
- c) is harmful to a child;
- d) infringes any patent, trademark, copyright or other proprietary right;
- e) deceives or misleads the addressee about the origin of the message, or knowingly and intentionally communicates misinformation or information which is patently false and untrue or misleading in nature;
- f) impersonates another person;
- g) threatens the unity, integrity, defence, security or sovereignty of India, friendly relations with foreign states, or public order, or causes incitement to a cognisable offence, or prevents investigation of any offence, or insults another nation;
- h) contains a software virus or other code designed to interrupt, destroy or limit the functionality of any computer resource;
- i) is in the nature of an online game not verified as permissible, or an advertisement or surrogate advertisement or promotion of such a game or of its intermediary; or
- j) violates any law for the time being in force.

4.4 You must also not: probe, scan or test the vulnerability of, or breach, any security or authentication measure; access non-public areas of our systems; scrape, harvest or collect data (including other users' personal data) by automated means; interfere with or overburden the App or its infrastructure; misuse reporting or grievance mechanisms; or use the App for unsolicited commercial communications.

4.5 Consequences.

We may remove or disable access to information, suspend or terminate accounts, forfeit fraudulently obtained Tokens, report to authorities and take legal action for breach of this Clause 4. We report content and offences that the law obliges us to report (including under the Bharatiya Nagarik Suraksha Sanhita, 2023 and the Protection of Children from Sexual Offences Act, 2012) to the appropriate authorities. Users who repeatedly breach may be permanently barred.

5. App Stores, Updates and Devices

- 5.1** These Terms are between you and SimulaFly only; not with Apple Inc. or Google LLC. The store from which you downloaded the App is not responsible for the App, its content, maintenance, support or any claim relating to it; SimulaFly is solely responsible. Apple and Google (and their subsidiaries) are third-party beneficiaries of these Terms to the extent the App Store Rules require, and may enforce them against you. Your use of the App must also comply with the applicable App Store Rules; if these Terms conflict with mandatory App Store Rules, the latter prevail to that extent for your relationship with the store.
- 5.2** If the App fails to conform to an applicable warranty, you may notify the relevant store, which may refund the purchase price (if any) per its policy; to the maximum extent permitted by law, the store has no other warranty obligation, and any other claim lies against SimulaFly under these Terms.
- 5.3** You represent that you are not located in a country subject to a relevant government embargo and are not on any applicable prohibited or restricted parties list, to the extent the App Store Rules require this representation.

- 5.4 We may issue updates, patches or new versions; some are required for continued use, and unsupported old versions may stop working. You are responsible for compatible hardware, OS versions and data connectivity; we do not warrant compatibility with every device.
- 5.5 **Device permissions** (camera, photos, microphone, storage, notifications, approximate location) are requested just-in-time, feature by feature, and are described in the Privacy Policy; revoking a permission disables only the dependent feature.

6. AI Features and AI-Generated Content

- 6.1 The App's design assistant and visualisation tools are artificial-intelligence systems and are identified as such in the interface. AI Outputs are algorithmically generated from your inputs and patterns in training data.
- 6.2 **Labels and provenance.**
- AI-generated or AI-modified visuals carry a visible "AI-generated visualisation" label and embedded provenance metadata. You must not remove, alter or obscure these labels or metadata, nor use the App to create content that misrepresents synthetic material as authentic.
- 6.3 **Prohibited AI uses.**
- Without limiting Clause 4, you must not use the AI features to generate or modify content that: depicts any person without lawful right; is obscene, paedophilic or harmful to a child; creates false documents or false depictions of persons or real-world events with intent to deceive; relates to weapons or contraband; or otherwise violates law.
- 6.4 **Reporting.**
- Use the in-app report control (long-press > Report) to flag offensive or unlawful AI Outputs; reports feed our moderation and filtering.
- 6.5 **No professional advice; verification.**
- AI Outputs are illustrative suggestions only — not professional interior-design, architectural, structural, electrical, fire-safety or other advice, and not a representation that any product will look, fit or perform as visualised, or be available at any price. Independently verify dimensions, structural suitability, product specifications, availability and pricing before purchasing or undertaking works.
- 6.6 We may apply technical measures (including automated tools) to prevent unlawful content, and may decline to generate outputs that would breach law or these Terms.

7. Tokens, Wallet and Rewards

- 7.1 **What Tokens are.**
- Tokens are closed-system digital credits issued by SimulaFly and redeemable only against SimulaFly's own Platform Services (such as AI generations, profile unlocks and premium tools). Tokens: (a) are not money, legal tender, a deposit, an investment, a security or a cryptocurrency; (b) earn no interest; (c) have no cash value and cannot be withdrawn, encashed or transferred to any person; and (d) cannot be used to pay Merchants or to buy any goods or services from anyone other than SimulaFly. Payments to Merchants are made separately through authorised payment systems. Tokens are either Paid Tokens (purchased by you) or Promotional Tokens (granted by SimulaFly without charge, namely the sign-up bonus, Reward Tokens for confirmed Merchant orders, and tokens for viewing advertisements). However acquired, all Tokens remain closed-system credits in terms provided hereunder, are redeemable only against Platform Services, carry no cash value, and may not be transferred, encashed or used to pay Merchants.
- 7.2 **Buying Tokens.**
- In the event SimulaFly offers the purchase of Tokens in the App from time to time, Token packs may be bought on iOS exclusively through Apple In-App Purchase, and on Android through Google Play Billing,

each subject to the relevant store's payment terms; where Tokens are offered for purchase on the SimulaFly website, payment is collected by RBI-authorised payment aggregators. Prices are displayed inclusive of applicable taxes before you pay. The purchase of Tokens is being introduced and becomes available only upon launch of that feature.

7.3 Sign-up Bonus

On successful registration, each new User is credited [10] complimentary Tokens (or such other number as SimulaFly may state in the App from time to time). These are Promotional Tokens: they have no purchase price and no cash or refund value, are redeemable only against Platform Services, and may be withheld or reversed in cases of duplicate accounts, fraud, abuse or circumvention. Only one sign-up bonus is available per User, regardless of the number of accounts or devices.

7.4 Using Tokens.

The Token cost of a Platform Service is shown before you confirm; confirmed deductions for delivered Platform Services are final. Currently, one (1) Token is deducted for each AI-assisted image (picture) generation; the Token cost of every other Platform Service is displayed before you confirm it, and SimulaFly may vary Token costs prospectively with notice. If a Platform Service fails to deliver due to a fault on our side (for example, a failed AI generation), the deducted Tokens are re-credited.

7.5 Reward Tokens.

We may credit Reward Tokens as a promotional incentive upon Merchant orders you place through the platform. Reward Tokens are credited only after the relevant Merchant has verified and confirmed the order, and are not credited upon order placement alone; where an order is subsequently cancelled, returned, refunded or found to be fraudulent, the corresponding Reward Tokens may be withheld or reversed. Reward Tokens are granted at our discretion under the programme terms displayed in the App; have no purchase price and no cash or refund value; may carry their own validity period of [12] months from credit; and are otherwise subject to this Clause. Accrued Reward Tokens will not be cancelled retrospectively except for fraud, abuse or order reversal; programme changes apply prospectively with notice.

7.6 Tokens for Viewing Advertisements

Where available, and as offered in the App from time to time, you may earn Tokens by viewing advertisements or completing similar promotional actions made available in the App. This feature is being introduced and becomes active only upon its launch. Tokens so earned are Promotional Tokens, granted at our discretion under the terms displayed at the point of the offer; they have no purchase price and no cash or refund value, are redeemable only against Platform Services, and may be withheld or reversed for fraud, abuse or circumvention (including the use of automated means). Your engagement with advertisements is subject to our Privacy Policy.

7.7 Validity.

Paid Tokens are valid for [24] months from purchase; we will remind you before unused paid Tokens expire. Expired Tokens lapse without value, except as provided hereunder or as law requires.

7.8 Refunds.

Tokens consumed against delivered Platform Services are non-refundable. Unused paid Tokens are refundable at your request: (a) on account closure; (b) if we discontinue the Token programme or materially reduce what Tokens can buy; or (c) where required by law or the applicable App Store Rules, in each case pro rata to the price actually paid, to the original payment method, less amounts attributable to fraud or abuse. Promotional Token (including the sign up bonus), Reward Tokens, and tokens earned by viewing advertisements are never refundable, as they are granted without charge. Reward and promotional Tokens are never refundable. Refunds for store-billed purchases follow the store's refund process where it applies.

7.9 Integrity.

Buying, selling or transferring Tokens outside the App, or obtaining them through fraud or abuse, is prohibited; we may reverse such Tokens and act as provided hereunder. Token balances are records of a limited contractual entitlement and not property transferable to third parties.

8. Merchants, Listings, Orders and Payments

- 8.1 **Our role.**
SimulaFly operates the App as a marketplace and intermediary: we provide the technology platform through which Merchants list and you discover, enquire, book and order. We do not manufacture, own, stock, sell or supply Merchant products or services, and we are not a party to any Merchant Transaction. The contract for every Merchant Transaction is between you and the Merchant.
- 8.2 **Merchant information.**
For each Merchant and listing we display the information the Merchant provides, including the Merchant's business name, geographic address, customer-care details, product descriptions and images, price (with a breakup of charges where applicable), country of origin where required, warranty/guarantee terms, and return, refund, exchange, delivery and grievance information. Merchants are responsible for the accuracy of their listings and we require undertakings from them that descriptions and images correspond with the actual goods and services.
- 8.3 **Ranking.**
Search and listing order may reflect parameters such as relevance to your query and room context, availability, price, ratings and fulfilment performance; the main parameters and their relative importance are explained at [Help>How results are ranked]. We do not accept payment to misrepresent ranking as organic.
- 8.4 **Pricing and availability.**
Prices, offers and availability are set by Merchants and may change until you place an order; manifest errors may be corrected and affected orders cancelled with a full refund of amounts paid. We do not manipulate prices to gain unreasonable profit or discriminate arbitrarily between consumers of the same class.
- 8.5 **Payments.**
Merchant Transactions are paid through RBI-authorised payment aggregators/payment gateways (not through Tokens and not through Apple/Google in-app purchase). We do not store your card number, CVV or UPI PIN; payment instruments are handled by the payment system under RBI regulations. Available payment methods, applicable fees, and the payment service provider's grievance contact are shown at checkout.
- 8.6 **Cancellations, returns and refunds.**
Each listing states the Merchant's cancellation, return, exchange and refund policy, which governs the Merchant Transaction. We do not impose cancellation charges on you beyond those we would bear if we cancelled unilaterally. Refunds of amounts collected through the platform are processed back to the original payment method within a reasonable period after the Merchant approves or law requires; Reward Tokens linked to a reversed order may be reversed.
- 8.7 **Delivery and after-sales.**
Delivery timelines, installation and after-sales service are the Merchant's responsibility as stated in the listing. Reward Tokens, where applicable, are credited after the Merchant confirms the order, in accordance with terms provided hereunder.
- 8.8 **Disputes with Merchants.**
Raise Merchant Transaction issues through Help > Orders for ticketed resolution; we facilitate communication and, where the platform collected payment, give effect to eligible refunds. This does not limit your rights against the Merchant under law, or your remedies before the consumer commissions.

9. Buyer Signals and Profile Unlocks

- 9.1 The platform shares limited buyer-interest signals with Merchants masked by default, with your identity and contact details disclosed to a specific Merchant only on an Unlock Event you initiate or consent to (enquiry, booking, order, chat, express consent, or fulfilment needs). Intent indicators are statistical estimates, not facts or guarantees. The full mechanics, the exclusions for Child accounts, and your opt-outs are in Section 8 of the Privacy Policy, which governs.
- 9.2 If you are a Merchant (or act for one), your access to buyer signals is governed by the Merchant Agreement, including strict purpose-limitation, confidentiality, security and deletion obligations, and you must not attempt to re-identify masked users or use signals beyond serving the relevant interaction.

10. Reviews and Community Standards

- 10.1 Reviews and ratings must reflect your genuine, first-hand experience. You must not post reviews for consideration, post about products you have not used, or disparage competitors at a Merchant's or anyone's behest; Merchants and their associates must not pose as consumers or post fake reviews.
- 10.2 We may verify, moderate, label, decline or remove reviews per our published criteria, and we display aggregate ratings in good faith. Review content is User Content provided hereunder.

11. Intellectual Property and User Content

- 11.1 **Our IP.**
The App, the SimulaFly name, logo and marks, the interface, software, databases, models and all Content other than User Content and Merchant materials are owned by SimulaFly or its licensors and protected under the Copyright Act, 1957, the Trade Marks Act, 1999 and other applicable law. No rights are granted except the licence in terms hereunder.
- 11.2 **Your content stays yours.**
You retain all rights in your User Content. You grant SimulaFly a non-exclusive, worldwide, royalty-free licence, for the duration of your account (and a winding-down period as needed to honour these Terms and law), to host, store, reproduce, adapt, process, display and transmit your User Content solely to: (a) operate and provide the Services to you (including generating your AI Outputs); (b) maintain safety, security and legal compliance; and (c) improve our AI models only if you have opted in under the Privacy Policy. We will not use your room photographs or chats in advertising or public marketing without your separate, express consent.
- 11.3 **Your promises.**
You own or are licensed to share your User Content; it does not infringe any third party's rights (including privacy- get consent before uploading images containing other people or their property interiors); and it complies with Clause 4.
- 11.4 **Moral rights.**
To the extent permitted by applicable law, you agree not to enforce against us moral rights in User Content to the limited extent needed to operate the Services as described (such as format shifts, crops and technical adaptations), without prejudice to rights that cannot be waived under the Copyright Act, 1957.
- 11.5 **AI Outputs.**
Subject to these Terms and any third-party rights in your inputs, SimulaFly grants you a personal, non-commercial licence to use, save and share your AI Outputs (with their labels intact). AI Outputs are produced by statistical models; similar outputs may be generated for other users, and no exclusivity is promised. Commercial use of AI Outputs requires our prior written consent.
- 11.6 **Feedback** you choose to give is non-confidential and we may use it without restriction or compensation.
- 11.7 **IP complaints.**

Rights holders may notify the Grievance Officer (Clause 22) with: identification of the protected work, the allegedly infringing material and its location in the App, proof of rights or authority, contact details, and a good-faith declaration of accuracy. We act on valid notices in accordance with law (Clause 21).

12. Privacy

- 12.1 Our collection and processing of personal data through the App is governed by the SimulaFly App Privacy Policy (available in-App and at www.simulafly.com), which is incorporated into these Terms. It covers, among other things: what we collect; purposes and lawful grounds; merchant data sharing and Unlock Events; AI processing and opt-in model training; Token and transaction data; retention; security and breach response; children's data and verifiable parental consent; your rights; and grievance routes.

- 12.2 Where a feature shares your personal data with a third party (including a third-party AI service), the App will disclose this and seek your explicit permission before doing so.

13. Fees, Taxes and Offers

- 13.1 Downloading and browsing the App is currently free; Tokens, premium tools and certain Platform Services are paid (Clause 7). We may introduce or change fees prospectively with prior notice; changes do not affect amounts already paid.
- 13.2 Displayed prices for Platform Services are inclusive of applicable taxes unless stated otherwise at the point of payment. You are responsible for taxes on amounts payable by you where law so provides.
- 13.3 Offers, coupons and promotions carry their own displayed terms (eligibility, validity, caps) and may be modified or withdrawn prospectively; they have no cash value and accrued, vested benefits will not be revoked except for fraud or abuse.

14. Suspension, Termination and Account Closure

- 14.1 **By us.**
We may suspend, restrict or terminate your access (with prior notice and a chance to remedy where reasonably feasible; immediately where necessary) if: (a) you materially or repeatedly breach these Terms; (b) law, a court, or a competent authority requires it; (c) fraud, security or integrity risks so demand; or (d) we discontinue the App or a Service (with reasonable advance notice and Clause 7.6 refunds). Where we remove content or restrict your account for content reasons, we will tell you the reasons and you may contest through Clause 22, except where law restricts disclosure.
- 14.2 **Dormancy.**
Accounts inactive for three years are closed and personal data erased after at least 48 hours' advance notice, as described in the Privacy Policy.
- 14.3 **By you.**
Close your account anytime at Settings > Account > Delete Account, or via [www.simulafly.com/account/delete]; closure takes effect within [7] days, allowing completion or cancellation of in-flight Merchant Transactions.
- 14.4 **Effect.**
On closure or termination: your licence ends and you must uninstall the App; unused paid Tokens are refunded pro rata (Clause 7.6) and Reward Tokens lapse; saved designs and account data are handled per the Privacy Policy; Clauses 1, 4.5, 7.6, 8.8, 11, 12, 15, 16, 17, 18, 19, 22 and 23 survive. Termination does not affect accrued rights and remedies of either party.

15. Disclaimers

- 15.1 To the maximum extent permitted by applicable law, the App and the Platform Services are provided "as is" and "as available", without warranties of uninterrupted or error-free operation, and AI Outputs are provided without warranty of accuracy, completeness or fitness for a particular purpose (Clause 6.5).
- 15.2 SimulaFly does not warrant Merchant products or services, the accuracy of Merchant listings, or that visualised products will match physical products; responsibility for Merchant Transactions lies with the Merchant (Clause 8).
- 15.3 Nothing in these Terms excludes, restricts or modifies any warranty, guarantee, right or remedy conferred by law that cannot be excluded, restricted or modified, including under the Consumer Protection Act, 2019.

16. Limitation of Liability

- 16.1 To the maximum extent permitted by law, neither party is liable to the other for loss of profits, revenue, business, goodwill or anticipated savings, loss or corruption of data, or any indirect, incidental, special,

consequential, punitive or exemplary loss, arising out of or in connection with the App or these Terms, even if advised of the possibility.

- 16.2 To the maximum extent permitted by law, SimulaFly's total aggregate liability for all claims arising out of or in connection with the App or these Terms in any twelve-month period shall not exceed the greater of: (a) the amounts you paid to SimulaFly for Platform Services in that period; and (b) INR [10,000].
- 16.3 **Nothing in these Terms excludes or limits liability for:** (a) death or personal injury caused by negligence; (b) fraud or fraudulent misrepresentation; (c) gross negligence or wilful misconduct; or (d) any liability that cannot be excluded or limited under applicable law, including non-excludable rights and remedies under the Consumer Protection Act, 2019.
- 16.4 The allocations of risk in Clauses 15 and 16 are a fair basis of this bargain, reflected in the pricing of the Services (most of which are free to you).

17. Indemnity

- 17.1 You will indemnify and hold harmless SimulaFly, its partners (in the LLP), officers, employees and agents against third-party claims, and resulting liabilities, losses and reasonable costs (including legal fees), to the extent arising from: (a) your User Content infringing third-party rights; (b) your breach of Clauses 4 (Acceptable Use), 6.3 (Prohibited AI uses) or 7.7 (Token integrity); (c) your violation of law in using the App; or (d) your dealings with a Merchant outside the platform's processes.
- 17.2 We will: notify you of the claim promptly; allow you to assume control of the defence with counsel reasonably acceptable to us (we may participate at our cost); and not settle without your consent, not to be unreasonably withheld. Your indemnity obligation is reduced to the extent the loss results from our breach, negligence or wilful misconduct.

18. Communications and Notices

- 18.1 You consent to receive electronic records and communications from us (in-App, push, email, SMS or other registered channels). Service communications are part of the App; promotional communications are sent only with your separate opt-in and honour DND preferences, as described in the Privacy Policy.
- 18.2 Legal notices to SimulaFly: in writing to support@simulafly.com or by post to the registered office (attention: Grievance Officer). Notices to you: to your registered email/mobile or by in-App notice; deemed received on transmission absent a delivery failure.

19. Governing Law and Dispute Resolution

- 19.1 These Terms and any dispute arising out of or in connection with them or the App are governed by the laws of the Republic of India.
- 19.2 **Talk to us first.** Most issues resolve through the Grievance Officer (Clause 22). For any unresolved dispute, either party may give written notice and the parties will negotiate in good faith for 30 days.
- 19.3 **Arbitration.** Failing resolution, the dispute shall be finally resolved by arbitration under the Arbitration and Conciliation Act, 1996, by a sole arbitrator appointed by [the Delhi International Arbitration Centre ((DIAC)] in accordance with its rules; seat and venue: [Noida, Uttar Pradesh]; language: English. The award is final and binding, and courts at the seat retain jurisdiction for interim measures (including under section 9) and enforcement.
- 19.4 **Your statutory rights are preserved.** Nothing in Clause 19.3 prevents or limits your right, as a consumer, to approach the consumer commissions or other statutory fora under the Consumer Protection Act, 2019, the Grievance Appellate Committee under the IT Rules, the Data Protection Board of India, or any regulator or authority of competent jurisdiction; arbitration of a consumer dispute proceeds only if you elect it after the dispute has arisen.

- 19.5 Either party may seek urgent injunctive or equitable relief from courts at Noida, Uttar Pradesh (or any court of competent jurisdiction) for IP infringement, data misuse or security threats, without breaching this Clause.

20. Force Majeure and General

- 20.1 Neither party is liable for delay or failure caused by events beyond its reasonable control (acts of God, natural disasters, epidemics, war, civil disturbance, governmental action, embargoes, utility or telecommunication failures, or failures of third-party infrastructure), provided the affected party resumes performance as soon as reasonably practicable. This Clause does not excuse payment obligations for services already delivered.
- 20.2 **Severability:** If any provision is held invalid or unenforceable, it is modified to the minimum extent necessary or severed, and the remainder continues.
- 20.3 **No waiver:** a failure or delay in exercising a right is not a waiver; a waiver of one breach is not a waiver of another.
- 20.4 **Assignment:** you may not assign these Terms; we may assign to an affiliate or successor in interest (including on merger, acquisition or transfer of the business) provided your rights are not materially diminished and notice is given; any change of the data fiduciary follows the Privacy Policy's business-transfer commitments.
- 20.5 **Relationship:** nothing creates a partnership, agency or employment between you and us.
- 20.6 **Third parties:** except the app stores (Clause 5.1), no third party has rights under these Terms.

21. Intermediary Status and Content Compliance

- 21.1 SimulaFly is an "intermediary" under section 2(1)(w) of the IT Act in respect of information provided by users and Merchants. We do not initiate third-party transmissions, select their receivers, or modify their content; we observe the due diligence required of intermediaries, including publishing these Terms and the Privacy Policy, the advisory and grievance mechanisms in these Terms, and expeditious action on lawful takedown requirements.
- 21.2 On receiving actual knowledge through a court order, or a written, reasoned intimation from an authorised government officer, that information on the App is unlawful, we remove or disable access expeditiously within the timelines required by law; we preserve removed information and associated records for the periods the law prescribes (currently 180 days or longer if required) for investigative purposes; and we provide information to lawfully authorised agencies within 72 hours of a valid request.
- 21.3 We deploy reasonable technical measures, including automated tools where appropriate, to prevent the hosting or generation of clearly unlawful content (including content harmful to children and unlawful synthetic media), consistent with law and proportionality.

22. Grievance Redressal and Appeals

- 22.1 Complaints, takedown notices, consumer grievances and rights requests go to the Grievance Officer:

Grievance Officer	Shourya Pratap
Email	support@simulafly.com
Postal address	Simula Technologies LLP, Seat No. FFSD/50, Plot No. 20, Block H-1/A, Sector 63, Noida 201301, Uttar Pradesh, India
In-App	Help > Raise a Complaint (a ticket number issues for every complaint)
Working hours	Monday to Friday, 09:00–18:00 IST (excluding public holidays)

- 22.2 **Timelines:** Acknowledgement within 24 hours (consumer complaints in any event within 48 hours); resolution of intermediary grievances within 7 days; removal requests concerning content covered by Rule 3(1)(b) (other than third-party-rights, IP and other-law items) within 36 hours; complaints of content showing nudity, sexual acts or impersonation (including morphed images) removed or disabled within 2 hours; court or notified government directions within 3 hours; consumer complaints redressed within 1 month; data-protection requests per the Privacy Policy (target 30 days; outer 90 days).
- 22.3 **Appeals:** If you are dissatisfied with the Grievance Officer's decision, or your complaint is not resolved within the prescribed period, you may appeal to the Grievance Appellate Committee (online at <https://gac.gov.in>) within 30 days; we comply with GAC orders and publish compliance reports. You may also approach the consumer commissions (or the National Consumer Helpline, 1915), the Data Protection Board of India for data matters, or any competent court or authority. No statutory remedy is excluded by these Terms.

23. Miscellaneous

- 23.1 **Entire agreement:** The Agreement (these Terms, the Privacy Policy and incorporated policies) is the entire agreement for the App.
- 23.2 **Survival:** Clauses listed in Clause 14.4 survive termination.
- 23.3 **Interpretation of consumer terms:** These Terms are to be read consistently with the Consumer Protection Act, 2019; in case of conflict with a non-waivable consumer right, the statute prevails.
- 23.4 **No abandonment of rights:** Nothing herein requires you to waive any right that cannot be waived in law, including the right to complain to the Data Protection Board of India.
- 23.5 **Headings and versions:** Headings do not affect interpretation. The current version is published in-App and at www.simulafly.com with its version number and effective date; prior versions are available on request.
- 23.6 **Quarterly advisories:** We periodically (at least once every three months) remind users in simple terms that non-compliant content may be removed, accounts may be suspended or terminated, unlawful content may attract penalties under law, and offences subject to mandatory reporting will be reported to the appropriate authorities.
- 23.7 **Contact:** support@simulafly.com | Simula Technologies LLP, Seat No. FFSD/50, Plot No. 20, Block H-1/A, Sector 63, Noida 201301, Uttar Pradesh, India.
- 23.8 **Language:** These Terms are executed in English, which controls. On request, and progressively in-App, these Terms are made available in the languages of the Eighth Schedule to the Constitution of India; translations are for convenience.

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